

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1259

By: Hardin

AS INTRODUCED

An Act relating to firearms; amending 21 O.S. 2021, Sections 1272 and 1277, which relate to the carrying of firearms; authorizing the carry of concealed handguns at polling places; amending 21 O.S. 2021, Section 1280.1, which relates to the possession of firearms on school property; authorizing the carry of concealed handguns at polling places located on school property; amending 21 O.S. 2021, Section 1290.24, as amended by Section 5, Chapter 160, O.S.L. 2023 (21 O.S. Supp. 2024, Section 1290.24), which relates to the Oklahoma Self-Defense Act; providing immunity from certain conduct occurring at polling places; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 1272, is amended to read as follows:

Section 1272.

UNLAWFUL CARRY

A. Notwithstanding any other provision of law, it shall be unlawful for any person to carry upon or about his or her person, or in a purse or other container belonging to the person, any pistol, revolver, shotgun or rifle whether loaded or unloaded or any

1 blackjack, loaded cane, hand chain, metal knuckles, or any other
2 offensive weapon, whether such weapon be concealed or unconcealed,
3 except this section shall not prohibit:

4 1. The proper use of guns and knives for self-defense, hunting,
5 fishing, educational or recreational purposes;

6 2. The carrying or use of weapons in a manner otherwise
7 permitted by statute or authorized by the Oklahoma Self-Defense Act;

8 3. The carrying, possession and use of any weapon by a peace
9 officer or other person authorized by law to carry a weapon in the
10 performance of official duties and in compliance with the rules of
11 the employing agency;

12 4. The carrying or use of weapons in a courthouse by a district
13 judge, associate district judge or special district judge within
14 this state, who is in possession of a valid handgun license issued
15 pursuant to the provisions of the Oklahoma Self-Defense Act and
16 whose name appears on a list maintained by the Administrative
17 Director of the Courts;

18 5. The carrying and use of firearms and other weapons provided
19 in this subsection when used for the purpose of living history
20 reenactment. For purposes of this paragraph, "living history
21 reenactment" means depiction of historical characters, scenes,
22 historical life or events for entertainment, education, or
23 historical documentation through the wearing or use of period,
24

1 historical, antique or vintage clothing, accessories, firearms,
2 weapons, and other implements of the historical period; ~~or~~

3 6. The transporting by vehicle on a public roadway or the
4 carrying of a firearm, concealed or unconcealed, loaded or unloaded,
5 by a person who is twenty-one (21) years of age or older or by a
6 person who is eighteen (18) years of age but not yet twenty-one (21)
7 years of age and the person is a member or veteran of the United
8 States Armed Forces, Reserves or National Guard or was discharged
9 under honorable conditions from the United States Armed Forces,
10 Reserves or National Guard, and the person is otherwise not
11 disqualified from the possession or purchase of a firearm under
12 state or federal law and is not carrying the firearm in furtherance
13 of a crime; or

14 7. The carrying of a concealed handgun at a polling place
15 during any election conducted by the State of Oklahoma, a county or
16 municipality by a person who is twenty-one (21) years of age or
17 older or by a person who is eighteen (18) years of age but not yet
18 twenty-one (21) years of age and the person is a member or veteran
19 of the United States Armed Forces, Reserves or National Guard or was
20 discharged under honorable conditions from the United States Armed
21 Forces, Reserves or National Guard, and the person is otherwise not
22 disqualified from the possession or purchase of a firearm under
23 state or federal law.

1 Except as provided in subsection B of Section 1283 of this
2 title, a person who has been convicted of any one of the following
3 offenses in this state or a violation of the equivalent law of
4 another state:

- 5 a. assault and battery pursuant to the provisions of
- 6 Section 644 of this title which caused serious
- 7 physical injury to the victim,
- 8 b. aggravated assault and battery pursuant to the
- 9 provisions of Section 646 of this title,
- 10 c. assault and battery that qualifies as domestic abuse
- 11 as defined in Section 644 of this title,
- 12 d. stalking pursuant to the provisions of Section 1173 of
- 13 this title,
- 14 e. a violation of an order issued under the Protection
- 15 from Domestic Abuse Act or a domestic abuse protection
- 16 order issued by another state, or
- 17 f. a violation relating to illegal drug use or possession
- 18 under the provisions of the Uniform Controlled
- 19 Dangerous Substances Act,

20 shall be prohibited from carrying a firearm under the provisions of
21 this paragraph. Any person who carries a firearm in the manner
22 provided for in this paragraph shall be prohibited from carrying the
23 firearm into any of the places prohibited in subsection A of Section
24 1277 of this title or any other place currently prohibited by law.

1 Nothing in this section shall modify or otherwise change where a
2 person may legally carry a firearm.

3 B. Any person convicted of violating the foregoing provision
4 shall be guilty of a misdemeanor punishable as provided in Section
5 1276 of this title.

6 SECTION 2. AMENDATORY 21 O.S. 2021, Section 1277, is
7 amended to read as follows:

8 Section 1277.

9 UNLAWFUL CARRY IN CERTAIN PLACES

10 A. It shall be unlawful for any person, including a person in
11 possession of a valid handgun license issued pursuant to the
12 provisions of the Oklahoma Self-Defense Act, to carry any concealed
13 or unconcealed firearm into any of the following places:

14 1. Any structure, building, or office space which is owned or
15 leased by a city, town, county, state or federal governmental
16 authority for the purpose of conducting business with the public;

17 2. Any courthouse, courtroom, prison, jail, detention facility
18 or any facility used to process, hold or house arrested persons,
19 prisoners or persons alleged delinquent or adjudicated delinquent,
20 except as provided in Section 21 of Title 57 of the Oklahoma
21 Statutes;

22 3. Any public or private elementary or public or private
23 secondary school, except as provided in subsections C and D of this
24 section;

1 4. Any publicly owned or operated sports arena or venue during
2 a professional sporting event, unless allowed by the event holder;

3 5. Any place where gambling is authorized by law, unless
4 allowed by the property owner;

5 6. Any other place specifically prohibited by law; and

6 7. Any property set aside by a county, city, town, public trust
7 with a county, city or town as a beneficiary, or state governmental
8 authority for an event that is secured with minimum-security
9 provisions. For purposes of this paragraph, a minimum-security
10 provision consists of a location that is secured utilizing the
11 following:

12 a. a metallic-style security fence that is at least eight
13 (8) feet in height that encompasses the property and
14 is secured in such a way as to deter unauthorized
15 entry,

16 b. controlled access points staffed by a uniformed,
17 commissioned peace officer, and

18 c. a metal detector whereby persons walk or otherwise
19 travel with their property through or by the metal
20 detector.

21 B. 1. It shall be lawful for a person to carry a concealed or
22 unconcealed firearm on the following properties:

23 ~~1. Any~~

a. any property set aside for the use or parking of any vehicle, whether attended or unattended, by a city, town, county, state or federal governmental authority~~7, 1~~

~~2. Any~~

b. any property set aside for the use or parking of any vehicle, whether attended or unattended, which is open to the public, or by any entity engaged in gambling authorized by law~~+~~,

~~3. Any~~

c. any property adjacent to a structure, building or office space in which concealed or unconcealed weapons are prohibited by the provisions of this section~~+~~,

~~4. Any~~

d. any property designated by a city, town, county or state governmental authority as a park, recreational area, wildlife refuge, wildlife management area or fairgrounds; provided, nothing in this paragraph shall be construed to authorize any entry by a person in possession of a concealed or unconcealed firearm into any structure, building, office space or event which is specifically prohibited by the provisions of subsection A of this section~~7~~,

~~5. Any~~

1 e. any property set aside by a public or private
2 elementary or secondary school for the use or parking
3 of any vehicle, whether attended or unattended;
4 provided, however, the firearm shall be stored and
5 hidden from view in a locked motor vehicle when the
6 motor vehicle is left unattended on school property^{+,L}
7 and

8 ~~6. — Any~~

9 f. any public property set aside temporarily by a county,
10 city, town, public trust with a county, city or town
11 as a beneficiary, or state governmental authority for
12 the holder of an event permit that is without minimum-
13 security provisions, as such term is defined in
14 paragraph 7 of subsection A of this section; provided,
15 the carry of firearms within said permitted event area
16 shall be limited to concealed carry of a handgun
17 unless otherwise authorized by the holder of the event
18 permit.

19 2. The carrying of a concealed handgun at a polling place
20 during any election conducted by the State of Oklahoma, a county or
21 municipality by a person who is twenty-one (21) years of age or
22 older or by a person who is eighteen (18) years of age but not yet
23 twenty-one (21) years of age and the person is a member or veteran
24 of the United States Armed Forces, Reserves or National Guard or was

1 discharged under honorable conditions from the United States Armed
2 Forces, Reserves or National Guard, and the person is otherwise not
3 disqualified from the possession or purchase of a firearm under
4 state or federal law.

5 3. Nothing contained in any provision of this subsection or
6 subsection C of this section shall be construed to authorize or
7 allow any person in control of any place described in subsection A
8 of this section to establish any policy or rule that has the effect
9 of prohibiting any person in lawful possession of a handgun license
10 or otherwise in lawful possession of a firearm from carrying or
11 possessing the firearm on the property described in this subsection.

12 C. A concealed or unconcealed weapon may be carried onto
13 private school property or in any school bus or vehicle used by any
14 private school for transportation of students or teachers by a
15 person who is licensed pursuant to the Oklahoma Self-Defense Act,
16 provided a policy has been adopted by the governing entity of the
17 private school that authorizes the carrying and possession of a
18 weapon on private school property or in any school bus or vehicle
19 used by a private school. Except for acts of gross negligence or
20 willful or wanton misconduct, a governing entity of a private school
21 that adopts a policy which authorizes the possession of a weapon on
22 private school property, a school bus or vehicle used by the private
23 school shall not be subject to liability for any injuries arising
24 from the adoption of the policy. The provisions of this subsection

1 shall not apply to claims pursuant to the Administrative Workers'
2 Compensation Act.

3 D. Notwithstanding paragraph 3 of subsection A of this section,
4 a board of education of a school district may adopt a policy
5 pursuant to Section 5-149.2 of Title 70 of the Oklahoma Statutes to
6 authorize the carrying of a handgun onto school property by school
7 personnel specifically designated by the board of education,
8 provided such personnel either:

9 1. Possess a valid armed security guard license as provided for
10 in Section 1750.1 et seq. of Title 59 of the Oklahoma Statutes; or

11 2. Hold a valid reserve peace officer certification as provided
12 for in Section 3311 of Title 70 of the Oklahoma Statutes.

13 Nothing in this subsection shall be construed to restrict authority
14 granted elsewhere in law to carry firearms.

15 E. Notwithstanding the provisions of subsection A of this
16 section, on any property designated as a municipal zoo or park of
17 any size that is owned, leased, operated or managed by:

18 1. A public trust created pursuant to the provisions of Section
19 176 of Title 60 of the Oklahoma Statutes; or

20 2. A nonprofit entity,
21 an individual shall be allowed to carry a concealed handgun but not
22 openly carry a handgun on the property.

23 F. Any person violating the provisions of paragraph 2 or 3 of
24 subsection A of this section shall, upon conviction, be guilty of a

1 misdemeanor punishable by a fine not to exceed Two Hundred Fifty
2 Dollars (\$250.00). A person violating any other provision of
3 subsection A of this section may be denied entrance onto the
4 property or removed from the property. If the person refuses to
5 leave the property and a peace officer is summoned, the person may
6 be issued a citation for an amount not to exceed Two Hundred Fifty
7 Dollars (\$250.00).

8 G. No person in possession of a valid handgun license issued
9 pursuant to the provisions of the Oklahoma Self-Defense Act or who
10 is carrying or in possession of a firearm as otherwise permitted by
11 law or who is carrying or in possession of a machete, blackjack,
12 loaded cane, hand chain or metal knuckles shall be authorized to
13 carry the firearm, machete, blackjack, loaded cane, hand chain or
14 metal knuckles into or upon any college, university or technology
15 center school property, except as provided in this subsection. For
16 purposes of this subsection, the following property shall not be
17 construed to be college, university or technology center school
18 property:

19 1. Any property set aside for the use or parking of any motor
20 vehicle, whether attended or unattended, provided the firearm,
21 machete, blackjack, loaded cane, hand chain or metal knuckles are
22 carried or stored as required by law and the firearm, machete,
23 blackjack, loaded cane, hand chain or metal knuckles are not removed
24 from the motor vehicle without the prior consent of the college or

1 university president or technology center school administrator while
2 the vehicle is on any college, university or technology center
3 school property;

4 2. Any property authorized for possession or use of firearms,
5 machetes, blackjacks, loaded canes, hand chains or metal knuckles by
6 college, university or technology center school policy; and

7 3. Any property authorized by the written consent of the
8 college or university president or technology center school
9 administrator, provided the written consent is carried with the
10 firearm, machete, blackjack, loaded cane, hand chain or metal
11 knuckles and the valid handgun license while on college, university
12 or technology center school property.

13 The college, university or technology center school may notify
14 the Oklahoma State Bureau of Investigation within ten (10) days of a
15 violation of any provision of this subsection by a licensee. Upon
16 receipt of a written notification of violation, the Bureau shall
17 give a reasonable notice to the licensee and hold a hearing. At the
18 hearing, upon a determination that the licensee has violated any
19 provision of this subsection, the licensee may be subject to an
20 administrative fine of Two Hundred Fifty Dollars (\$250.00) and may
21 have the handgun license suspended for three (3) months.

22 Nothing contained in any provision of this subsection shall be
23 construed to authorize or allow any college, university or
24 technology center school to establish any policy or rule that has

1 the effect of prohibiting any person in lawful possession of a
2 handgun license or any person in lawful possession of a firearm,
3 machete, blackjack, loaded cane, hand chain or metal knuckles from
4 possession of a firearm, machete, blackjack, loaded cane, hand chain
5 or metal knuckles in places described in paragraphs 1, 2 and 3 of
6 this subsection. Nothing contained in any provision of this
7 subsection shall be construed to limit the authority of any college,
8 university or technology center school in this state from taking
9 administrative action against any student for any violation of any
10 provision of this subsection.

11 H. The provisions of this section shall not apply to the
12 following:

13 1. Any peace officer or any person authorized by law to carry a
14 firearm in the course of employment;

15 2. District judges, associate district judges and special
16 district judges, who are in possession of a valid handgun license
17 issued pursuant to the provisions of the Oklahoma Self-Defense Act
18 and whose names appear on a list maintained by the Administrative
19 Director of the Courts, when acting in the course and scope of
20 employment within the courthouses of this state;

21 3. Private investigators with a firearms authorization when
22 acting in the course and scope of employment;

23 4. Elected officials of a county, who are in possession of a
24 valid handgun license issued pursuant to the provisions of the

1 Oklahoma Self-Defense Act, may carry a concealed handgun when acting
2 in the performance of his or her duties within the courthouses of
3 the county in which he or she was elected. The provisions of this
4 paragraph shall not allow the elected county official to carry the
5 handgun into a courtroom;

6 5. The sheriff of any county may authorize certain employees of
7 the county, who possess a valid handgun license issued pursuant to
8 the provisions of the Oklahoma Self-Defense Act, to carry a
9 concealed handgun when acting in the course and scope of employment
10 within the courthouse in the county in which the person is employed.
11 Nothing in the Oklahoma Self-Defense Act shall prohibit the sheriff
12 from requiring additional instruction or training before granting
13 authorization to carry a concealed handgun within the courthouse.
14 The provisions of this paragraph and of paragraph 6 of this
15 subsection shall not allow the county employee to carry the handgun
16 into a courtroom, sheriff's office, adult or juvenile jail or any
17 other prisoner detention area; and

18 6. The board of county commissioners of any county may
19 authorize certain employees of the county, who possess a valid
20 handgun license issued pursuant to the provisions of the Oklahoma
21 Self-Defense Act, to carry a concealed handgun when acting in the
22 course and scope of employment on county annex facilities or grounds
23 surrounding the county courthouse.

1 I. For the purposes of this section, "motor vehicle" means any
2 automobile, truck, minivan, sports utility vehicle, or motorcycle,
3 as defined in Section 1-135 of Title 47 of the Oklahoma Statutes,
4 equipped with a locked accessory container within or affixed to the
5 motorcycle.

6 SECTION 3. AMENDATORY 21 O.S. 2021, Section 1280.1, is
7 amended to read as follows:

8 Section 1280.1.

9 POSSESSION OF FIREARM ON SCHOOL PROPERTY

10 A. It shall be unlawful for any person to have in his or her
11 possession on any public or private school property or while in any
12 school bus or vehicle used by any school for transportation of
13 students or teachers any firearm or weapon designated in Section
14 1272 of this title, except as provided in subsection C of this
15 section or as otherwise authorized by law.

16 B. For purposes of this section:

17 1. "School property" means any publicly owned property held for
18 purposes of elementary, secondary or vocational-technical education,
19 and shall not include property owned by public school districts or
20 where such property is leased or rented to an individual or
21 corporation and used for purposes other than educational;

22 2. "Private school" means a school that offers a course of
23 instruction for students in one or more grades from prekindergarten
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1 through grade twelve and is not operated by a governmental entity;
2 and

3 3. "Motor vehicle" means any automobile, truck, minivan or
4 sports utility vehicle.

5 C. Firearms and weapons are allowed on school property and
6 deemed not in violation of subsection A of this section as follows:

7 1. A gun or knife designed for hunting or fishing purposes kept
8 in a privately owned vehicle and properly displayed or stored as
9 required by law, provided such vehicle containing said gun or knife
10 is driven onto school property only to transport a student to and
11 from school and such vehicle does not remain unattended on school
12 property;

13 2. A gun or knife used for the purposes of participating in the
14 Oklahoma Department of Wildlife Conservation-certified hunter
15 training education course or any other hunting, fishing, safety or
16 firearms training courses, or a recognized firearms sports event,
17 team shooting program or competition, or living history reenactment,
18 provided the course or event is approved by the principal or chief
19 administrator of the school where the course or event is offered,
20 and provided the weapon is properly displayed or stored as required
21 by law pending participation in the course, event, program or
22 competition;

1 3. Weapons in the possession of any peace officer or other
2 person authorized by law to possess a weapon in the performance of
3 his or her duties and responsibilities;

4 4. A concealed or unconcealed weapon carried onto private
5 school property or in any school bus or vehicle used by any private
6 school for transportation of students or teachers by a person who is
7 licensed pursuant to the Oklahoma Self-Defense Act, provided a
8 policy has been adopted by the governing entity of the private
9 school that authorizes the possession of a weapon on private school
10 property or in any school bus or vehicle used by a private school.
11 Except for acts of gross negligence or willful or wanton misconduct,
12 a governing entity of a private school that adopts a policy which
13 authorizes the possession of a weapon on private school property, a
14 school bus or vehicle used by the private school shall be immune
15 from liability for any injuries arising from the adoption of the
16 policy. The provisions of this paragraph shall not apply to claims
17 pursuant to the Workers' Compensation Code;

18 5. A gun, knife, bayonet or other weapon in the possession of a
19 member of a veterans group, the national guard, active military, the
20 Reserve Officers' Training Corps (ROTC) or Junior ROTC, in order to
21 participate in a ceremony, assembly or educational program approved
22 by the principal or chief administrator of a school or school
23 district where the ceremony, assembly or educational program is
24 being held; provided, however, the gun or other weapon that uses

1 projectiles is not loaded and is inoperable at all times while on
2 school property;

3 6. A handgun carried in a motor vehicle pursuant to a valid
4 handgun license authorized by the Oklahoma Self-Defense Act onto
5 property set aside by a public or private elementary or secondary
6 school for the use or parking of any vehicle; provided, however,
7 said handgun shall be stored and hidden from view in a locked motor
8 vehicle when the motor vehicle is left unattended on school
9 property; ~~and~~

10 7. A handgun carried onto public school property by school
11 personnel who have been designated by the board of education,
12 provided such personnel either:

13 a. possess a valid armed security guard license as
14 provided for in Section 1750.1 et seq. of Title 59 of
15 the Oklahoma Statutes, or

16 b. hold a valid reserve peace officer certification as
17 provided for in Section 3311 of Title 70 of the
18 Oklahoma Statutes,

19 if a policy has been adopted by the board of education of the school
20 district that authorizes the carrying of a handgun onto public
21 school property by such personnel; and

22 8. A concealed handgun at a polling place located on public
23 school property during any election conducted by the State of
24 Oklahoma, a county or municipality by a person who is twenty-one

(21) years of age or older or by a person who is eighteen (18) years
of age but not yet twenty-one (21) years of age and the person is a
member or veteran of the United States Armed Forces, Reserves or
National Guard or was discharged under honorable conditions from the
United States Armed Forces, Reserves or National Guard, and the
person is otherwise not disqualified from the possession or purchase
of a firearm under state or federal law.

Nothing in this subsection shall be construed to restrict authority granted elsewhere in law to carry firearms.

D. Any person violating the provisions of this section shall, upon conviction, be guilty of a misdemeanor punishable by a fine of not to exceed Two Hundred Fifty Dollars (\$250.00).

SECTION 4. AMENDATORY 21 O.S. 2021, Section 1290.24, as amended by Section 5, Chapter 160, O.S.L. 2023 (21 O.S. Supp. 2024, Section 1290.24), is amended to read as follows:

Section 1290.24.

IMMUNITY

A. The state or any political subdivision of the state, as defined in Section 152 of Title 51 of the Oklahoma Statutes, and its officers, agents and employees shall be immune from and not subject to liability resulting or arising from:

1. Failure to prevent the licensing of an individual for whom the receipt of the license is unlawful pursuant to the provisions of

1 the Oklahoma Self-Defense Act or any other provision of law of this
2 state;

3 2. Any action or misconduct with a firearm committed by a
4 person pursuant to the provisions of the Oklahoma Self-Defense Act
5 or by any person who obtains a firearm;

6 3. Any injury to any person during a firearm training course
7 conducted by a firearms instructor certified by the Council on Law
8 Enforcement Education and Training to conduct training under the
9 Oklahoma Self-Defense Act, or injury from any misfire or malfunction
10 of any firearm on a training course firing range supervised by a
11 certified firearms instructor under the provisions of the Oklahoma
12 Self-Defense Act, or any injury resulting from carrying a concealed
13 or unconcealed firearm pursuant to any firearms training; ~~and~~

14 4. Any action or finding pursuant to a hearing conducted in
15 accordance with the Administrative Procedures Act as required in the
16 Oklahoma Self-Defense Act; and

17 5. Any action or misconduct with a handgun committed by a
18 person authorized pursuant to subsection A of Section 1272 of this
19 title to carry a concealed handgun at a polling place during any
20 election conducted by the State of Oklahoma, a county or
21 municipality.

22 B. Firearms instructors certified by the Council on Law
23 Enforcement Education and Training to conduct training for the
24 Oklahoma Self-Defense Act shall be immune from and not subject to

1 liability to third persons resulting or arising from any claim based
2 on an act or omission of a trainee.

3 C. The provisions of this subsection shall not apply to claims
4 pursuant to the Administrative Workers' Compensation Act.

5 SECTION 5. This act shall become effective November 1, 2025.

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